SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NUMBER	PAGE 1 OF 48
DCO-PR-19-0244	

2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			95332419Q0090	06/27/2019

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	Cierra Washington	202-772-6579	07/29/19 02:00 PM

9. ISSUED BY — CODE 953324

MCC-HQ
Millennium Challenge Corporation, Contracts and Grants Management Division, 1099 Fourteenth St NW, Suite 700
Washington, DC, 20005-3550, US

10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: 0 % FOR:

- ☐ SMALL BUSINESS
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ HUBZONE SMALL BUSINESS
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- ☐ 8 (A)

NAICS:

SIZE STANDARD:

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	13b. RATING
☒ SEE SCHEDULE		☐	14. METHOD OF SOLICITATION: ☒ RFQ ☐ IFB ☐ RFP

15. DELIVER TO — CODE

See Schedule

16. ADMINISTERED BY — CODE

17a. CONTRACTOR/ OFFEROR — CODE — FACILITY CODE

TELEPHONE NO.

17b. ☐ CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY — CODE

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA

See Schedule

26. TOTAL AWARD AMOUNT *(For Govt. Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☒ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____ . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

TERRI N TUTT DANIEL (affiliate)

Digitally signed by TERRI N TUTT DANIEL (affiliate)
Date: 2019.06.27 17:23:55 -04'00'

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELPHONE NUMBER OF AUTHORZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
38. S/R ACCOUNT NO.	39. S/R VOUCHER NUMBER	40. PAID BY		

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

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Listing of Incorporated Purchase Requisitions

Incorporated Purchase Requisition Numbers:

DCO-PR-19-0244

Section B - Supplies or Services and Prices/Costs

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0001		Deliverables | Lesotho II Data Study	1	EA
Contract Type:Firm Fixed Price				
			Unit Price	
			Extended Price	
	Description: Firm Fixed Prices shall be inclusive of labor, travel and other direct costs to meet the requirements of the deliverables in Section F.			
Purchase Requisitions			DCO-PR-19-0244	

IDC Type: Not Applicable

Clauses incorporated by reference

None

Clauses incorporated by full text

SECTION B - SUPPLIES OR SERVICES AND PRICE/COSTS

SECTION B - SUPPLIES OR SERVICES AND PRICE/COSTS

SERVICES TO BE PROVIDED

The Millennium Challenge Corporation (MCC) is seeking proposals from U.S., international, African regional, and / or local Lesotho-based organizations to design a facility to implement an evaluation of statistical capacity and data use in Lesotho. Quotes must submit a proposal that reflects (1) how the facility will be designed and implemented, and (2) demonstrate how and to what extent their strategy and approach will help to inform the Compact data ecosystem investments described in

section C – Subsection Statistical Capacity and Data Use.

This requirement is being procured on behalf of the Government of Lesotho utilizing 609g grant funding. MCC headquarters will manage the contract performance and accept deliverables. Deliverables will be shared with the Government of Lesotho and other stakeholders, at MCCs discretion.

MCC expects this study to be completed through a combination of desk research and rapid assessment, including a study mission to Lesotho to obtain primary inputs. This mission may be divided into stages, if required by the detailed work plan. . It is anticipated that three to five months should be approximately sufficient to fulfill the requirements from award of the contract until completion of the final report. Proposals should include an indication of the level of effort required and anticipated timeline for completion of the study.

The Contractor shall provide all personnel, equipment, tools, materials, supervision, and other items and non-personal services necessary to perform the tasks as defined in Section C of the Statement of Work.

CONTRACT TYPE

MCC anticipates awarding a firm-fixed price type contract. Firm Fixed Prices shall be inclusive of labor, travel and other direct costs to meet the requirements of the statement of work.

Quoters are encouraged to offer *discounts* to their commercial rates when preparing their fixed prices.

PAYMENT SCHEDULE – FIRM-FIXED PRICE DELIVERABLES

Task Number	Deliverable	Due Date	Percentage	Payment Amount
	Financial Plan and Draft Schedule/Timetable (Detailed Workplan)	Two weeks after award and/or in accordance with the work plan	20%	$X.XX
	Status Reports	Bi-Weekly after award and/or in accordance with the work plan		
1 through 5	Assessment Terms of Reference	No later than six weeks after award and/or in accordance with the project schedule	12.5%	$X.XX
1 through 5 And 7 through 13	Assessment Mission	No later than twelve weeks after award and/or in accordance with the project schedule	12.5%	$X.XX
1 through 6	Post – Assessment	One week after	25%	$X.XX

Task Number	Deliverable	Due Date	Percentage	Payment Amount
	Mission Report	return from mission		
6 through 13	Assessment Report and Presentation	No later than four weeks after return from mission	30%	$X.XX

Section C - Description/Specifications/Work Statement

Clauses incorporated by reference

None

Clauses incorporated by full text

SECTION C – DESCRIPTION/ SPECIFICATIONS/ STATEMENT OF WORK

SECTION C – DESCRIPTION/ SPECIFICATIONS/ STATEMENT OF WORK

INTRODUCTION

MCC works with developing countries to promote sustainable economic growth to reduce poverty. Since its establishment in 2004, MCC has deployed more than $10 billion in development grants through compact and threshold programs across 40+ countries. Compacts are five-year agreements between MCC and a country to fund specific programs targeted at reducing poverty and stimulating economic growth.

MCC operates under the principle of country ownership: countries identify their own priorities for achieving sustainable economic growth and poverty reduction following broad consultation within their society, and work in partnership with MCC to refine programs. When a country is awarded an MCC compact, it sets up a local accountable entity—called the Millennium Challenge Account (MCA)—to manage and oversee all aspects of implementation. By statute, implementation of any MCC compact must be completed within 5 years; there is no possibility of extension. As a result, thorough project design, feasibility studies and political economy analysis are critical before the compact enters into force.

One of MCC's guiding principles is a focus on measurable results. After a country is selected to begin developing a compact, MCC and its country partners undertake an analysis to identify the binding constraints to economic growth in the local economy. Prior to signing a compact, MCC quantitatively assesses the likely impact of investment proposals on economic growth and poverty reduction, as well as their level of risk. During and after compact implementation, MCC works to measure results by monitoring program execution and conducting rigorous independent evaluations that seek to learn and quantify the projects' actual impact on household welfare. MCC strives for transparency in all of its programs and posts many of these analyses on the agency's public website.

BACKGROUND – MCC LESOTHO COMPACT

Teams working on the Lesotho compact seek to address one primary binding constraint to the economy: Ineffective policy planning, coordination, and execution. This constraint is manifested in two distinct ways:

1. Absence of planning and coordination, i.e. how effectively the government works internally, and interacts with the private sector
2. By inefficient public service delivery, public investment management

Development of the private sector will be considered across four productive sectors: (1) Agriculture, (2) Manufacturing, (3) Tourism, and (4) Creative industries. Inputs to these sectors which will be evaluated for their potential contributions are roads, water and catchment management, land, and information and communication technology.

Inputs to these sectors, (which will be evaluated for their potential contributions) are roads, water and catchment management, land, and information and communication technology. Limited statistical capacity and data use characterize the ineffective policy planning, coordination and execution, and restrict the growth opportunities of these productive sectors.

Health Care

Poor health, a critical economic target primarily related to HIV/AIDS, will be addressed through strengthening the health system in order to reduce new HIV infections and other chronic diseases. Productivity in the private sector is impeded by poor health caused in part by a weak health system unable to address the disease burden. MCC is seeking to create a strengthened health system that effectively and efficiently addresses the health needs of its population. In addition, it will increase human capital and improve the productive capacity of the working age population.

The inability to set budget priorities or align with donor organizations at national and sub-national levels are due to poor use of data for coordination and planning, and the lack of data capacity within health system. Gaps exist in both systems and human skills for the monitoring and evaluation of service and personnel, human resource management and personnel development, staffing allocation, and health care service delivery.

Data Collection

Efficient and responsive government planning and services are built on data assets that are interoperable and shared across ministries, the private sector and citizens. MCC's goal is to create a workforce that is technology and data literate, and citizens that are engaged through data-driven e-government systems that allow more efficient access to data and enable public transactions. Fundamental to the success of the proposed Compact activities is the ability to use and understand data and statistics to drive responsive, evidence-based go vernment planning and service delivery.

Moreover, a key aspect of the MCC model is country ownership – which increasingly requires that partner countries have greater capability to collect, understand and analyze their own data, using powerful but complex tools to support decisions related to development priorities and resource utilization leading to economic growth.

Statistical Capacity and Data Use – Expected Focus of Investments

The data environment in Sub-Saharan Africa (SSA) countries is evolving but remains constrained. Notably on the "demand" or "user" side – and at the subnational and local levels where there is a need for greater capacity to use data for decision making to inform, drive, and measure development impact.

The lack of digital and data literacy, data use and data-driven-decision making results in fewer benefits to people at the local level. The impact is twofold on individuals – first, they could perhaps improve their livelihoods from greater access to, and use of, data, and second as recipients of benefits from service providers, including governments, as well as donors, not-for-profit organizations and the private sector Private sector refers here to that part of the economy which is run by private individuals or groups, usually as a means of enterprise for profit, and is not controlled by the State..

MCC seeks to develop the country's domestic data capabilities - and bring about positive changes in the use of data to drive better service delivery, alignment of budgets and needs, and transparency and mutual accountability between citizens and

government. The Lesotho II Compact can improve the broader data ecosystem – data supply and demand, human capacity, and data literacy. Finally, through greater focus on evidence, data skills training, and innovation in processes and methodologies, there is also an opportunity for more inclusive participation in the economy.

MCC Compact Goals

The goals of the MCC Compact projects around data are to:

1. Strengthen government policies and practices related to data, including the capabilities of the Bureau of Statistics.
2. Remove impediments to data interoperability and sharing between ministries and between national and sub-national levels of government.
3. Build the capacity of local government, the private sector, and individual citizens to use data.

OBJECTIVE

Fundamental to designing programs that will catalyze data analysis and increase government and citizen use of data is understanding the current data landscape in Lesotho. An initial strategic assessment of the various aspects of the data ecosystem will be critical to further planning for building statistical capacity in Lesotho. This includes how and where data is created and housed, who holds (or owns) the data, and if and how data is currently utilized. This should focus on the key sectors for the Compact, but also draw inferences and provide guidance for the overall ecosystem.

SCOPE OF WORK

Better data, capable data analysis, and strategic use of information provide connectivity between different activities of the developing plans for the Lesotho II Compact.

MCC requires both the facts of the situation as well as expert recommendations on strategies/approaches to accomplish the goal of improving data usability, data use capacity, data literacy, and using data to support evidence-based decision making, for the overall development of Lesotho and to support the Compact objectives.

As a baseline, strengths and weaknesses of the current process, policy and practices, data requirements and recommend ways to improve the availability, interoperability, and quality of the statistics and analysis for use in supporting MCC Compact activities. There is some level of assumption that the government will be better able to provide services to the following sectors over time due to Compact and other efforts.

TASKS

1. Data Ecosystem Assessment

Undertake a broad data ecosystem assessment, including recommending steps needed to be undertaken to achieve a national statistical roadmap, using a thorough and well-documented methodology. Innovative methods of assessment data collection, analysis and/or presentation are welcomed, but should be clearly described in the project proposal.

The assessment should determine and evaluate the presence and interaction of prototypical constraints (See Appendix 1) on data ecosystems, including: lack of demand, lack of supply, lack of technical capacity, and adverse operating environments.

This assessment, because of its breadth, should provide information and context for the other task items listed below. Listing these individually should not be taken as separate areas of study, but as areas to be evaluated specifically as part of the overall study.

Questions to be addressed:

What is the current operational data use environment within the Government of Lesotho (GOL), specifically in regard to how

data is used (or not) to drive better decision making for the use of government funds, resources, personnel, and strategic plans. This necessarily includes the state of data capacity, data use, data collection and interoperability within and among the: Bureau of Statistics, Ministry of Health, Ministry of Development Planning, Ministry of Finance, Ministry of Public Service, Ministry of Local Government and Chieftainship Affairs, and others to be agreed following the literature review. Which Ministries do or do not have and put to use digital technology and data management?

Evaluate data stored within ministries relevant to compact activity: Are data sets in reusable formats? Are they interoperable? Who within the Ministries has access (formally and informally)?

2. Assess and provide recommendations to strengthen capacity of the Bureau of Statistics

The Bureau of Statistics (BoS) has the mandate for assembling and certifying official statistics, and are a key source and sink of data capacity, as well as critical to improvements in the ecosystem. An assessment of the Bureau's capabilities, as well as recommendations for improvements, will provide a key viewpoint on the country's statistical capacity.

Questions to be addressed:

What processes around data collection, cleanup, storage, access exist?

What is the current mandate of the BoS, and how can the mandate be improved to strengthen the ecosystem? What portions of its mission is it fulfilling well, and which can be improved?

What obstacles exist to BoS statistics and data sets becoming more functional, and more readily accessible?

Who holds the political capital to champion improved use of data within the Government of Lesotho? Is anyone within the BoS well-positioned to move this kind of initiative forward; or would the drive need to come from another agency?

3. Assessment of and initial engagement on data and statistics policy

According to the Director of the Bureau of Statistics, the Statistics Act is in need of amendment. Some changes have been tabled to SADC for review, but with no responding activity to date. The NSDS expired in 2016/2017, and is awaiting review by OECD/PARIS21.

Other than the Statistics Act, there is no legislation or guidance on data privacy, and nothing on publishing or opening of data. There is no FOIA that enables citizens to request information.

Initial communication with the Government of Lesotho to improve data policies should be done as early as possible in order to facilitate later outcomes and to have a clear understanding of political will to make changes favorable for citizens' rights. Involving international authorities with expertise on forming policies for data sharing and publication standards as well as privacy and data protection is an essential step; a group which has worked in a number of countries and understands best practice for legislative environments would be effective to guide this process. (This may require sub-contracting of an outside international organization.) Initial consultations would inform larger activities to implement a sound policy regimen.

Questions to be addressed:

What is the current policy around data use by ministries (of interest to the Compact)?

What existing, draft or in-process policies exist related to data, open data, data strategy, etc., and what is their status? In which/what ministries are they housed? What is the quality of the draft policy or legislation? How can these policies be improved and moved forward to approval and implementation, or sound enforcement?

What is required to move forward with an updated National Statistical Strategy?

Is there any oversight of data collection methodologies? Is there a process by which citizen, NGO, civil society or other voices can influence what data is collected and how it is used?

4. Review, evaluate and recommend strategies for government monitoring and evaluation

An improved and modernized monitoring and evaluation strategy could position the Government of Lesotho to better collect and analyze data related to its operations, making it better able to offer services to its citizens. A review of the current system and evaluation of the system against international norms and best practices will offer a clear view of current status and possibilities for improvement.

Recommendations for strategies to improve the government M&E, as well as how to successfully implement some or all of the recommendations, will provide a roadmap for improvement.

Questions to be addressed:

What monitoring framework does the government of Lesotho have in place, if any? How can this be improved? What attempts at reform have been made previously, and why were these successful or not? What political or institutional barriers exist that may affect successful implementation of reforms?

What international statistical reporting, such as SDGs, is undertaken and what agency or ministry is responsible?

Particularly in the five key areas of the Compact (Manufacturing, Agriculture, Creative, Tourism, and Health), how could a reformed monitoring framework be implemented as part of "demonstration projects"? (Demonstration projects are Compact-funded projects that will be implemented using improved policies and methods – for procurement, financial management, technical evaluation, and monitoring, among others – in order to shift the working model of government and private-sector coordination.)

What processes determine the data that is collected by ministries, either as administrative or operational data; or for monitoring and evaluation? Is there a process for giving the public or the Bureau of Statistics a voice in what data gets collected and how it's used?

5. Assess potential and strategies for data-driven subnational and community engagement

The BoS indicated that additional capacity is needed at sub-national levels in order to improve data collection and analysis at district and village levels. Further understanding is required of the complexities of bottom-up, community-driven data collection. Country-guided planning for engagement at this level will be essential.

Proposals should provide an evaluation of sub-national data flows on health, economic growth and gender, and potential improvements, including methods available for community engagement, feedback or criticism. Identify areas in which local governments and private-sector interests interact, and those in which interaction could be improved.

As part of this assessment, document data flows between levels of government: National, district, village, etc. How can data move more effectively between levels, and how could beneficial change be implemented and introduced?

Making use of sub-national data assessment, recommend strategies for sub-national engagement and prioritization within districts and communities. These strategies will be aligned to the overall data ecosystem development, but focused on citizen engagement and increasing communication and dialogue between government, private sector, and citizenry.

Questions to be addressed:

What datasets are available at sub-national levels that are used locally, but not nationally; and which are used only for national purposes (such as monitoring, budgeting, international reporting)?

In the health sector, which development partners are collecting data, what data are they collecting and how does the information flow? Are the data sets reported to the government? If yes, how does the government use the data? Who decides what data is being collected?

What barriers to sub-national data use and community engagement exist? How do low technology penetration and low digital literacy affect interactions?

6. Develop a data inventory

As part of the data ecosystem assessment, develop a systematic data inventory and gap analysis. The inventory should primarily target Compact-related sectors (health and productive sectors; but secondarily roads, land and water management) but be as comprehensive as possible. This inventory may be indicative for the purpose of this study, but should be developed so that a more-comprehensive inventory may be undertaken later, making use of the indicative inventory developed by this study. It is anticipated that this inventory will be more complete for the areas of interest described in the Objectives section above, in order to inform Compact development.

Questions to be addressed:

What datasets are available, what are their characteristics and metadata, and which are publicly accessible?

7. Assess data literacy and strategies for improvement

Data literacy is the largest barrier to Lesotho becoming a beneficiary of the data revolution, rather than a country that is left on the wrong side of the "digital divide". But it is also critical, if Lesotho's economy is to fully participate in the modern global economy, that the country develops these skills. Its neighbor, South Africa, is leading Africa in technology solutions, and Lesotho will continue to be left behind if digital literacy is not developed.

The solutions to nearly every development challenge that Lesotho faces will have some digital literacy requirement. Health and HIV care and treatment, for example, is increasingly data-driven as patients and outcomes are tracked and resources re-allocated to address needs. Insights for decision-making and justification for decisions and policies should be data-driven, necessitating improved understanding of analyses for government, private sector and individual citizens.

Lesotho does benefit from a high base literacy rate – which indicates that building digital literacy can be achieved if resources are made available and a digital culture emerges.

Questions to be addressed:

For those universities offering technology-related degrees: what technical infrastructure, degree requirements, practical exposure to digital tools and problems, data analysis training exists already?

How much access to data and digital literacy skills is provided to women and disadvantaged groups such as rural populations and the poor. How can greater access be provided for these groups?

8. Review e-government opportunities

E-government can play an important role in helping to alleviate ineffective policy planning, coordination and execution, particularly in hard-to-reach sub-national areas, where improved communication and transactional systems can exponentially shift coordination and response times. Plans to advance the early-stage activity toward e-government services shows willingness, but lack a clear and technically sound strategy.

This study will review technical aspects (i.e., not political) of e-government opportunities, in coordination with MCC-commissioned and other governance studies. This review, including financial needs analysis, of current and proposed e-government strategies, can show technical weaknesses and services gaps, as well as developing estimates of expenditures required to implement a range of plans. This analysis should also delineate dependencies on infrastructure and other resources to establish well-functioning e-government systems.

As part of e-government considerations, integration of civic technology, including citizen-proposed applications and innovations, would strengthen government's capabilities to better serve its citizenry.

Questions to be addressed:

What framework exists for e-government? Which services are online and usable already? What else is planned and at what stage are other initiatives in planning, implementation or operation? Does an individual office or ministry hold the mandate?

What barriers exist to citizens interacting with e-government, and how can these barriers be removed or their effects mitigated?

What obstacles would be faced by women, girls and other underserved populations in accessing e-government services? Are there gender norms or other issues in use of technology and digital skills, such as time constraints, device affordability or access, or mobility, cultural, or safety constraints to access public facilities?

9. Assess gender data and strategies

Because of the importance of Lesotho's women to its near- and long-term economic success, it is critical to give specific attention to improvement of availability and use of data that describe the role and status of women in society. As examples, having better and more frequently updated information on land ownership and use will lead to better decision-making on this issue; as will measurement of the informal sector in which the work of women is frequently dismissed as "uneconomic".

In studying the overall data, tech and innovation landscape, particular emphasis on data that describes the role of women will improve the overall understanding of required economic development, and highlight particular areas of policy planning and coordination that will improve the status of women in the Lesotho economy.

The assessment of gender data has at least two components:

- Disaggregated data: Capabilities and knowledge to collect and use data that differentiates between sexes as well as age and other key criteria. This is essential for the Bureau of Statistics, but also important for ministries, NGOs and other organizations.

- Data use: Are women and girls able and encouraged to use digital technologies and to make evidence-based decisions? Are there barriers that prevent them from doing so?

Questions to be addressed:

What is the level of understanding of gender data at the BoS, and among the government generally? Are there NGOs or CSOs working on gender data and data driven solutions active in Lesotho?

Does the BoS collect data on gender based violence? To what extent does BoS collect data that could inform issues that particularly affect women (in the health sector, in land, in agriculture, entrepreneurship, asset ownership)? Does BoS work with civil society to gather data to help inform gender-specific research questions?

10. Assess the innovation landscape and recommend enhancements

Catalyzing small changes in ways of providing services and doing business can lead to big changes in an economy. Understanding where innovation is thriving in Lesotho, and why it has not emerged in other areas, will provide guidance for economic development plans of the Compact and other development programs.

Questions to be addressed:

In what areas is innovation most likely to emerge, and how will this stimulate the economy?

What methods of fomenting innovation would be efficacious in Lesotho?

Are there types or areas of innovation that may help women and youth to participate more frequently and fully in the economy? Are there already-established organizations or champions of this work?

Are there apps, social media or other types of e-health services that are providing information to people or linking/referring/enabling them to access health services? These may be private or public, SA- or Lesotho-based.

11. Identify opportunities for coordination

Review current research and prior or current initiatives around statistical and data capacity building at the local, national, and regional level. Known current initiatives such as the UNDP/EU Lesotho Data Project, and World Bank diagnostics

are described in Section III above. Make recommendations as to where MCC efforts can leverage prior development efforts of data-related activities.

Questions to be addressed:

Are there projects underway or planned in Lesotho in the subject areas described in this NOFO? If so, are these convened by government, NGO, outside donor, or other sources?

12. Consult to define a national statistical roadmap

Beyond assessing the data ecosystem, it will be important to understand aspects of what may be acceptable to Lesotho and developing plans to mitigate key areas of need. This must be done in coordination with OECD's PARIS21 (the Partnership in Statistics for the 21st century), which is intended to do an assessment of the Lesotho government's national statistical system. That assessment will lead to development of an updated NSDS.

In alignment with this effort, a national plan for the broader data ecosystem should be developed, including private sector, donors and NGOs, and individual citizens as well as the aforementioned GoL national statistical system. This will establish a national data and data use roadmap, in consultation and cooperation with participants in data generation, analysis, presentation and use.

13. Analyze and recommend alternatives for strategic interventions

If statistical capacity and data use become an area of investment under the MCC compact, what alternatives would be most effective in improving the situation? Provide a list of recommendations with justification and estimated costs.

Questions to be addressed:

Are there projects and/or ministries best suited to pilot and trial interventions around data capacity use and training?

Data labs have been suggested as a practical strategy for distributing data analysis capabilities and digital literacy training to the hot-spot areas under the Compact. Please review possibilities for this strategy, including a site analysis to assess the best strategic location(s) for capacity and innovation 'labs' to serve as centers of data use activity, training, capacity building, and collaboration. This should include considerations of usable and improvable space, digital connectivity and technical infrastructure, and proximity to related target elements such as innovation-oriented projects and health facilities.

CONFLILCT OF INTEREST

The Contractor and its subcontractors would NOT be precluded from bidding on work and services to be procured by the local MCA accountable entity or using funds advanced under a Compact in the relevant country.

The Contractor and its subcontractors would be precluded from bidding on work and services to be procured by MCC using its due diligence funds for the development of this requirement, project appraisal and implementation oversight, unless the Contractor submits a mitigation plan sufficient to ameliorate any conflict of interest pursuant to the rules applicable to the procurement process.

Section D - Packaging and Marking

Clauses incorporated by reference

None

Clauses incorporated by full text

SECTION D - PACKAGING AND MARKING

SECTION D - PACKAGING AND MARKING

The contractor shall ensure the contract number is clearly visible on all information submitted to the Contracting Officer Representative, Project Monitor and/or Contracting Officer.

Section E - Inspection and Acceptance Terms

None

Clauses incorporated by reference

None

Clauses incorporated by full text

SECTION E - Inspection and Acceptance

SECTION E - Inspection and Acceptance

Incorporated by Reference: FAR 52.212-4 (a) Contract Terms and Conditions-Commercial Terms (October 2018) *Inspection/Acceptance*

Section F - Delivery or Performance

Line Item: 0001

Period Of Performance Start Date	Period Of Performance End Date	Period Of Performance Address
9/11/19	9/10/20	MCC Headquarters Millennium Challenge Corporation 1099 Fourteenth Street NW, Suite 700 WASHINGTON US 20005

Clauses incorporated by reference

None

Clauses incorporated by full text

SECTION F – DELIVERIES OR PERFORMANCE

SECTION F – DELIVERIES OR PERFORMANCE

PERIOD OF PERFORMANCE

11 September 2019 – 10 September 2020

Deliverables shall be submitted in accordance with the deliverable schedule, the period of performance is extended to allow for any unforeseen delays.

PLACE OF PERFORMANCE

The Contractor shall perform services in Lesotho or at their own offices, as needed by MCC. During missions to Lesotho, the Contractor shall perform at the project sites, as needed by MCC. Significant time in country is anticipated during the period of performance.

While performing services in Lesotho, the Contractor shall be responsible for arranging temporary office space as would be required for work not taking place through site visits or meetings with project stakeholders.

DELIVERABLES AND REPORTING REQUIREMENTS

Table 1 provides an overview of deliverables and reporting requirements for the consultancy.

Table 1

Task Number	Deliverable	Language	Due Date
	Financial Plan and Draft Schedule/Timetable (Detailed Workplan)	English	Two weeks after award and/or in accordance with the work plan
	Status Reports	English	Bi-Weekly after award and/or in accordance with the work plan
1 through 5	Assessment Terms of Reference	English	No later than six weeks after award and/or in accordance with the project schedule
1 through 5 And 7 through 13	Assessment Mission	English	No later than twelve weeks after award and/or in accordance with the project schedule
1 through 6	Post – Assessment Mission Report	English	One week after return from mission

6 through 13	Assessment Report and Presentation	English	No later than four weeks after return from mission

DELIVERABLE FORMATS

All such reports are to be submitted in English as requested by MCC electronically using WINDOWS based MS-Office 2007 or later products including WORD for text, data tables in EXCEL, appropriate MS-Office 2003 or later programs for exhibits, schedules using MS-Project, and PowerPoint deck. All summary documents should be submitted suitable for sharing outside MCC. Original drawing files should be submitted in AUTOCAD 2002 (or later), and also in PDF printable version. Digital photo files should be submitted in JPG format. GIS data should be submitted both in ArcView files, and PDF printable files. Presentations should be prepared with PowerPoint. All work files shall be submitted to MCC along with PDF files.

The Contractor shall establish and maintain a comprehensive reference index of all relevant documents reviewed by the Contractor. Any and all such documents made available and collected by the Contractor, will be compiled in usable form and delivered in an organized fashion to MCC at the end of the contract.

ACCEPTANCE CRITERIA

All documents produced and/or collected by the contractor, electronic and hard copies, shall be the sole property of MCC. The Contractor shall establish and maintain a comprehensive electronic data base and reference index of all relevant documents reviewed, produced, and/or edited by the Contractor. Any and all such documents will be electronically compiled in usable form and delivered to MCC, in an organized electronic format acceptable to MCC, at the end of the contract, and if requested by MCC also in hard copies.

The Contractor shall provide a document management system acceptable to MCC. MCC, at its sole discretion, may provide such system as SharePoint or similar in addition or in lieu of the Contractor's system. The Contractor shall abide by MCC required communication protocol including sharing information and reports with the MCC team, and/or other MCC consultants for efficient and timely reviews and communications as specifically requested.

Deliverables will be evaluated according to the following criteria:

- Thoroughness and timeliness in complying with all of the elements in the tasks specified.
- Quality and clarity of analyses and work produced.
- Timeliness and efficacy of communications with the Core Team and relevant counterparts at MCC.

All reports are to be submitted in English in hard and electronic copy (in MS Word), with tables, data and calculations in MS Excel.

CONTRACT PERFORMANCE MONITORING

Quality Assurance: The Contractor shall have in place and maintain a Quality Control Plan (QCP) that covers, as a minimum, how the Contractor intends to meet the requirements of all performance objectives, monitor and proactively manage contract requirements. It shall also include the mechanism by which the Government will be notified of performance related incidents that are likely to affect quality of services or impact mission accomplishment. The Contractor shall provide a copy of its QCP to the COR within 10 days of the effective date of contract award. Any proposed changes to the QCP shall be provided to the Contracting Officer for review and comment no later than 10 working days prior to the effective date of the proposed changes.

TIMING AND REPORTING

All formal communication with MCC, including reports, will be submitted to the Contracting Officer's Representative (COR). The COR for this requirement will be identified via separate correspondence.

The COR will have technical responsibility for monitoring the performance. The COR will review and evaluate the contract's performance, and also will coordinate any communications with relevant counterparts and other donor agencies and organizations.

Any change in the terms of the contract must be made in writing and approved by the Contracting Officer. No representation of the COR shall serve as a basis for an alteration in the general scope of this contract or of the terms and conditions of the contract unless confirmed in writing by the Contracting Officer. The contractor must communicate with the Contracting Officer on all matters that pertain to the contract terms. Proceeding with the work without proper contractual coverage could result in nonpayment for that work.

Section G - Contract Administration Data

Requesting Office Address
MCC-HQ Millennium Challenge Corporation Contracts and Grants Management Division 1099 Fourteenth St NW, Suite 700 Washington DC 20005-3550 Phone: Fax: Contact Details:

Property Administration Office Address
MCC-HQ Millennium Challenge Corporation Contracts and Grants Management Division 1099 Fourteenth St NW, Suite 700 Washington DC 20005-3550 Phone: Fax: Contact Details:

COTR Office Address
MCC-HQ Millennium Challenge Corporation Contracts and Grants Management Division 1099 Fourteenth St NW, Suite 700 Washington DC 20005-3550 Phone: Fax: Contact Details:

Issuing Office Address
MCC-HQ Millennium Challenge Corporation Contracts and Grants Management Division 1099 Fourteenth St NW, Suite 700

Washington DC 20005-3550	
Phone:	Fax:
Contact Details:	

Clauses incorporated by reference

None

Clauses incorporated by full text

MCC 52.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) AND/OR PROJECT MONITOR (PM) (JULY 2012)

(a) The Contracting Officer may designate a Government representative to act as the Contracting Officer's Representative (COR) or Project Monitor (PM) to perform functions under the contract such as review and/or inspection and acceptance of supplies, services, including construction, and other functions of a technical nature. The Contracting Officer will provide a written notice of such designation to the COR and/or PM and the Contractor. The designation letters will set forth the authorities and limitations of the COR and/or PM under the contract.

(b) Modifications to this contract are effective only if reduced to writing and executed by the Contracting Officer. The Contractor is specifically prohibited from performing any work that is outside the scope of this contract without the approval of the Contracting Officer. The Contracting Officer cannot authorize the COR or any other representative to sign documents (i.e., contracts, contract modifications, etc.) that require the signature of the Contracting Officer.

(End of clause)

MCC 52.232-70 INVOICE INSTRUCTIONS (MAY 2017)

Invoices shall be paid in accordance with the Prompt Payment Act, thirty days (30) following receipt of a proper invoice. The Contractor shall submit each invoice electronically via email or fax to the following:

Fax: 303.969.5151/7281 ATTN: MCC Payments, or

Email: MCC_Accounting_IBCDENVER@ibc.doi.gov, or

As an alternative to electronic submission of invoices, one copy of each invoice may be submitted to the following address:

Interior Business Center

M/S D-2773

7301 West Mansfield Avenue

Lakewood, CO 80235-2230

If it is determined that the amount billed is incorrect, the invoice may be revised by the Government, or the contractor may be required to submit a revised invoice.

To constitute a proper invoice, each invoice must include the following information and/or attached documentation:

(1) Name, address and telephone of the Contractor

(2) Date of invoice and invoice number

(3) Contract number (including task order or call number and contract line item(s)) also modification number, if applicable

(4) Description (quantity, unit of measure, unit price, and extended price) of the supplies/services rendered (including hours incurred and billing rate, as applicable to the contract)

(5) A schedule depicting the following information:

Amount Invoiced This Period	Cumulative Amount Invoiced	Authorized Value of Contract	Balance Remaining on Contract

If the contractor is billing for costs incurred over more than a single month, the costs for each month in which the costs were incurred and shall be segregated into the month they were actually incurred.

(6) Name of Contracting Officer's Representative (COR); and

(7) Signature of authorized representative of the firm with the following invoice certification:

"The undersigned hereby certifies to the best of my knowledge and belief that: the sum claimed under this contract is proper and due, and all the costs of contract performance have been paid, or to the extent allowed under the applicable payment clause, will be paid by the Contractor when due in the ordinary course of business; the work reflected by these costs has been performed, and amounts involved are consistent with the requirements of this Contract.

BY:_____

TITLE:_____

DATE: _____

Inquiries regarding the status of invoices may be directed to NBC Accounting. The email address is: MCC_Accounting_IBCDENVER@ibc.doi.gov**.**

(End of clause)

Section H - Special Contract Requirements

Clauses incorporated by reference

None

Clauses incorporated by full text

SECTION H – SPECIAL CONTRACT REQUIREMENTS

SECTION H – SPECIAL CONTRACT REQUIREMENTS

KEY PERSONNEL

The Contractor shall provide a resume for the Key Personnel. Personnel identified as Key Personnel are considered to be

essential to the work being performed hereunder. Before changing an individual identified as Key, the Contractor shall notify the Contracting Officer in no less than 15 business days and will submit written justification as to the reason for substitution. Substitution within the first 90 days will only be considered for reasons of illness, death, or termination of employment. The Justification must include the name and qualifications of the proposed substitute(s). The proposed substitute(s) will possess qualifications equal to or superior to those of the Key Person being replaced. The Contractor shall not substitute Key Personnel without written consent from the Contracting Officer. No change in fixed unit prices may occur as a result of Key Personnel substitution. The Key Personnel may, with the consent of the contracting parties, be amended from time to time during the course of this contract to either add or delete personnel, as appropriate, provided that the contracting officer may ratify, in writing, such diversion and such ratification shall constitute the consent of the Contracting Officer. Substitutions of Key Personnel shall be equal to or have greater qualifications than the personnel being replaced.

Key Personnel

Project Manager

MCC is seeking a Project Manager with the following skills:

- 7 to 10 years of experience of Senior Level Management AND Technical Leadership in the areas of digital capacity assessment and development
- Demonstrated experience in data assessments and international development in Africa
- Team expertise in the use of data and data skills to accelerate development on a Sub-national and national scale
- Demonstrated experience for data training, data visualization, and data communication
- Demonstrated experience in mapping data flows on the sub-national and the national scale
- Experience in measureable impacts, achieving results, and integration of current technologies into recommendations

Preferred skills

- 7 to 10 years of experience of Senior Level Management AND Technical Leadership in the areas of development in the context of emerging economies
- Experience in sub-national data collection and analysis
- Experience and/or knowledge in Lesotho
- Demonstrated innovation in data assessment and/or statistical capacity building
- Expertise in social and gender aspects of digital literacy and data skills

Non - Key Personnel

A small team (3 to 5 individuals) comprised of local, regional and/or international experts to leverage disparate capabilities is expected to complete the diverse aspects of the study. The ideal team would have specific knowledge and prior experience around data, data landscapes, and data function, and generalized or generalizable experience across the sectors of interest. Collaboration with in-country personnel would be appropriate to help gather data and to fully contextualize the study's results

Quoters must complete the table below comprised of the small team that would be needed to complete the study.

Contract Labor Category	Description of Role	Qualifications

MCC 52.203-70 CONTRACTOR NON-DISCLOSURE AGREEMENT (MAY 2017)

All contractor employees or independent contractors engaged in this contract shall provide a non-disclosure agreement as follows signed by the individual contractor/consultant and, if a contractor employee, by the contractor's contract administrator:

NON-DISCLOSURE AGREEMENT

I, _____ do solemnly swear (or affirm) that I will not divulge any information, whether obtained orally or in writing from, or data maintained by the Millennium Challenge Corporation (MCC) to any unauthorized person for any purpose. I will not directly or indirectly use, or allow the use of Confidential Information for any other purpose other than that directly associated with my officially assigned duties for MCC.

Further, I will not directly or indirectly reveal or cause to be revealed the nature or content of any _____, except to authorized personnel.

I am aware that the unauthorized use of information may be a violation of law and this Agreement.

Company or Subcontractor

Understand that authorized persons refer only to persons assigned to a project requiring access to Confidential Information or directly in the line of management over the project requiring access to the data.

_____

[signatory]

_____ _____

Contract Administrator Date

MCC 52.204-70 SECURITY REQUIREMENTS FOR CONTRACTOR PERSONNEL - FEBRUARY 2019

A. Compliance with MCC Safety and Security Regulations at MCC Headquarters

1. Personal services contractors (PSCs) and contract employees including those working for subcontractors shall be subject to and abide by all MCC safety and security policy and procedures while on MCC premises, and satisfy applicable requirements for fitness to perform work for or on behalf of MCC, personnel security, and obtaining an MCC Photo Identification (ID) Badge.

2. MCC may impose applicable criminal, civil and/or administrative sanctions, including removal, suspension, termination or suspension of access to information, information systems, or MCC facilities, against any PSC or contractor employee who fails to adequately protect classified national security information or sensitive information, including such information designated as Controlled Unclassified Information, from unauthorized disclosure. The sanctions imposed are under the authority of the applicable laws, regulations, Government-wide and MCC policies.

B. PSC and Contract Employee Fitness and MCC Photo ID Badge Requirements

1. The following are requirements for a PSC or contractor employee who works under this contract and requires access to any of the following: MCC Headquarters, MCCNet, Sensitive But Unclassified (SBU), Foreign Government Information (FGI) or any other designated sensitive information (such as classified national security information and Controlled Unclassified Information under 32 CFR Part 2002).

a. Such an individual must be:

i. A U.S. citizen or have Permanent Resident Status in the U.S;

ii. Screened for fitness to work for or on behalf of MCC;

iii. Determined by MCC to be fit to work for or on behalf of MCC; and

iv. Determined eligible to be issued an MCC Photo Identification Badge.

b. In addition, if the individual is not a U.S. citizen for or in a position designated as moderate or high risk (i.e., a public trust position), the individual must have been residing, working and/or attending an educational institution in the U.S. for at least three, years.

c. MCC may allow such an individual to perform services under this contract based on: (1) a favorable suitability/fitness screening as an interim fitness determination, and (2) a favorable interim credentialing determination for issuance of an MCC Photo ID Badge, as applicable. An interim fitness determination does not satisfy requirement a. iii.) of this paragraph, and an interim credentialing determination does not satisfy requirement a. iv.) of this paragraph.

d. An investigation for an individual's fitness will be required to satisfy requirement a. iii.) except whenever the individual already has an investigation on file that meets the requirements for an investigation based on all applicable position designation(s) for the individual that satisfies/satisfy guidelines issued by the Suitability and Credentialing Executive Agent (SuitCredEA), the Security Executive Agent (SecEA) and the individual has been working for or on behalf of a Federal agency continuously for at least one year in one or more Federal positions or as a contractor employee that was/were subject to suitability or fitness investigation satisfying guidelines issued by the Suitability and Credential Executive Agent. However, no exception to the investigation requirement will be granted whenever MCC obtains new information in connection with the individuals that calls into question the individual's fitness under the criteria for suitability in 5 CFR 731.202. The investigation required will be based on position designation performed by MCC in accordance with 5 CFR 731 and 5 CFR 1400.

2. PSCs and contractor employees for or in public trust positions are subject to reinvestigation for fitness within the timeframe specified by the SuitCredEA.

3. A PSC or contractor employee whose position risk designation increases due to reassignment or change in job duties or responsibilities, is subject to the fitness investigation requirements for the higher risk position at the time the position designation is changed. If the position with the higher risk designation is the same one occupied by the individual, the individual may remain in the position while the investigation is being conducted; otherwise, the individual may not perform services under this contract in the new capacity until the requirements of B.1. of this clause are satisfied. Any upgrade in the investigation required for the new risk level will be initiated by MCC within 14 calendar days of the reassignment or change in job duties or responsibilities.

4. Fitness determinations will be made by MCC using the criteria and guidelines for making suitability determinations in 5 CFR 731.202 and related guidelines of the SuitCredEA. When no new investigation is required, MCC may determine an individual unfit when the investigative record on file for the individual shows conduct that is incompatible with the core duties of the relevant position by applying the criteria and guidelines referenced in this paragraph.

5. If a PSC or contractor employee develops one or more issues with respect to the criteria in 5 CFR 731.202 prior to any required investigation or reinvestigation, MCC may conduct an investigation at any time sufficient to resolve the issues and determine the individual's fitness to work for or on behalf of MCC.

6. Interim and final determinations on eligibility to be issued a MCC Photo ID Badge will be made by MCC based on the SuitCredEA's criteria in "Final Credentialing Standards for Issuing Personal Identity Verification Cards" or it latest successor.

7. Contractor, including any PSC, is required to have all affected personnel complete appropriate security forms, including a signed Personal Information Request Form (PIRF) and a signed form OF 306 Declaration for Federal Employment, which are to be signed and faxed to MCC DIS at 202-521-3590. Candidates for PSC positions must also include a copy of their resume in the fax transmission that includes the PIRF and OF 306. In addition, individuals subject to fitness investigation or reinvestigation must complete a Standard Form 85P or 85P-S (as specified by MCC Domestic and International Security (DIS)) and related signature releases, supplemental forms; and submit to fingerprint imaging within seven (7) days after receiving a DIS e-mail request for the documents. MCC DIS will provide the necessary forms, which must be submitted using an on-line system on the Internet. (Also see "Contract Award" below.)

8. MCC Photo ID Badges will only be issued to individuals determined eligible to be issued one and who attend a scheduled MCC Orientation Program and Security Briefing.

9. Whenever MCC determines an individual is unfit or ineligible to be issued a MCC Photo ID Badge, the Contracting Officer (CO) or CO's Representative (COR) will notify the contractor's contractual point of contact (POC) in writing of the decision and, whenever applicable, that accesses to MCC facilities and information systems have been terminated. Subsequent to issuance of these notifications, contractors are required to provide MCC a suitable replacement; and PSCs and contractors are responsible, whenever applicable, for the return of the subject individual's MCC Photo ID Badge and any MCC equipment that was issued to the individual.

C. Personnel Security Requirements for PSCs Paid Directly by MCC

1. PSCs directly paid by MCC without interim national security eligibility granted by MCC or national security eligibility at least at the level required for the position, duties, or work activities specified as requiring such eligibility, including that for access to classified national security information, by this contract are prohibited from rendering services under this contract.

2. MCC will determine national security eligibility for all PSCs to whom MCC makes direct payments for services rendered and whose position requires such eligibility as approved by the appropriate MCC department vice president-level executive. MCC will: (1) make eligibility determinations based on a background investigation that meets the requirements issued by the SecEA; (2) determine whether a previously-performed investigation satisfies the investigative requirements using guidelines issued by the Office of Management and Budget or the SecEA; and (3) adjudicate personnel security background investigations or any other information related to determining national security eligibility using the criteria in Security Executive Agent Directive 4, *National Security Adjudicative Guidelines*, or its latest successor.

3. A PSC granted national security eligibility by MCC is subject to a personnel security reinvestigation by MCC within the timeframe specified by the SecEA.

4. MCC may at any time perform a personnel security reinvestigation of a PSC to whom it has granted national security eligibility.

5. MCC may administratively withdraw national security eligibility it has granted whenever it determines such eligibility is no longer needed. MCC may administratively downgrade a Top Secret security clearance holder's clearance to Secret whenever it determines the holder no longer needs access to Top Secret information.

6. Whenever a personnel security investigation or reinvestigation is required, PSCs and PSC candidates will submit to MCC DIS, personnel security background investigation forms, including a PIRF, OF 306, a copy of their resume, a Questionnaire for National Security Positions (SF 86), signature releases and supplemental forms, and submit to fingerprint imaging used to access reports from the Federal Bureau of Investigation (FBI) and other national databases.

7. In exceptional circumstances MCC may grant interim national security eligibility with access to classified information at the Secret level to a PSC directly paid by MCC while a personnel security background investigation is in progress based on favorable adjudication of previously-completed personnel security investigations or reinvestigations, the PSC's OF 306, resume, SF 86 submission, and any other relevant information.

8. MCC will not grant national security eligibility to any individual determined ineligible to be issued a MCC Photo ID Badge or unfit.

9. PSCs to whom MCC grants national security eligibility will not be issued a security clearance and, consequently, will not be permitted access to classified information, until the individual attends an MCC Security Clearance Briefing and signs a Classified Information Nondisclosure Agreement (SF 312).

10. Whenever MCC determines an individual not eligible for national security eligibility, the Contracting Officer (CO) or CO's Representative (COR) will notify the contractor's contractual point of contact (POC) in writing of the MCC determination(s) and, whenever applicable, that accesses to MCC facilities and information systems have been terminated. MCC will process such individuals in accordance with §5.2 of Executive Order 12968, "Review Proceedings for Denials or Revocations of Eligibility for Access". Subsequent to issuance of these notifications, contractors are required to provide MCC a suitable replacement; and PSCs and contractors are responsible, whenever applicable, for the return of the subject's MCC Photo ID Badge and any MCC equipment that was issued to the individual.

D. Personnel Security Requirements for Contractor employees and Other PSCs

1. Contractor employees and PSCs not directly compensated by MCC without a national security eligibility or interim eligibility at least at the level required for the position, duties, or work activities specified as requiring such eligibility, including that for access to classified national security information and occupy a sensitive position (as defined in 5 CFR 732), by this contract are prohibited from rendering services under this contract.

2. Contractor employees and PSCs not directly compensated by MCC requiring national security eligibility to perform work for MCC must hold one at the appropriate level in accordance with the policy and procedures of the National Industrial Security Program (NISP, Executive Oder 12829, as amended) and the NISP policy and procedures of the Department of Defense. Such individuals granted national security eligibility who are assigned to or visit MCC headquarters or overseas MCC/Resident Country Director offices (i.e., where access to classified national security information is required), must have their eligibility/security clearances or interim security clearances certified using a visit authorization request. The contractor shall submit all employee visit authorization requests to DIS via fax to 202-521-3590, along with a PIRF and form OF 306 completed and signed by each contractor employee or PSC.

3. Contractors and subcontractors shall notify the CO and COR of all terminations of their employees (with respect to their MCC service) who possess MCC Photo ID Badges, have access to MCC information systems, or any MCC IT equipment; and in addition, contractors and subcontractors shall notify the CO and COR of all contractor employees proposed to replace those terminated employees terminated by providing the information for employees required in section G. of this clause.

E. Work Performance

The contractor shall prescreen all their employee candidates for MCC service covered under this clause to ensure they initially possess the necessary investigation and clearance requirements. In addition, the contractor is responsible to periodically, at least annually, review their employees' background and work performance to ensure that nothing has occurred which may negatively impact or jeopardize their employees' eligibility for an MCC Photo ID Badge, favorable fitness determination, and security clearance, whichever are applicable.

Unless otherwise provided herein, in no event will the need for MCC to process investigations and clearances (including physical on-site access at MCC facilities) be considered an excusable delay under the contract. In addition, the need to replace contractor employees determined by the MCC to be ineligible for any reason will not be considered an excusable delay.

Failure to comply with the contractor employee investigation and clearance requirements herein may result in termination of the contract for default.

F. Contract Award

Within two (2) business days after notice of award from the contracting officer, contractor shall propose a list of all contractor employees and subcontractor employees working under the contract (unless otherwise stated in the contract) including the information and documentation required herein. This requirement does not include clerical or administrative support staff (unless otherwise stated in the contract).

The list shall include each employee's full name, work and home addresses, work and personal e-mail addresses, work and personal telephone numbers and personal cell telephone numbers. This list shall state and justify the level of access each contractor candidate will require; that is, access to MCC headquarters, access to sensitive information, MCCNet access, or no access privileges. In addition, the contractor will provide a central point-of-contact regarding investigation and clearance issues. If the contractor has documentation which provides evidence of a contractor employee's previous or current background investigation and/or clearance status, the contractor will provide the employee's investigations/clearance status to MCC DIS via fax to 202-521-3590 in the form of a Visit Letter. Upon a request from the contractor, a sample Visit Letter template will be made available to a contractor via e-mail from MCC DIS.

(End of clause)

MCC 52.209-70 ORGANIZATIONAL CONFLICTS OF INTEREST: PRECLUSION FROM IMPLEMENTATION CONTRACT (JULY 2012)

Work under this contract may call for the Contractor to furnish important services in support of the design or feasibility of specific activities that may become part of a Millennium Challenge Corporation (MCC) Compact. In accordance with the principles of FAR Subpart 9.5, THE CONTRACTOR MAY BE INELIGIBLE TO FURNISH, AS A PRIME OR SUBCONTRACTOR OR OTHERWISE; THE IMPLEMENTATION SERVICES FOR ANY ACTIVITIES FOR WHICH IT PROVIDES SUBSTANTIAL DESIGN SERVICES EXCEPT FOR SUCH SERVICES THAT MAY BE FURNISHED UNDER THIS CONTRACT. If a determination is made that the contractor is ineligible for implementation services, the MCC Managing Director of Contracts and Grants Management may authorize a waiver (in accordance with FAR 9.503) if the Director determines that preclusion of the Contractor from the implementation contract would not be in the Government's best interest.

(End of clause)

MCC 52.245-70 CONTRACTOR ACQUIRED MCC GOVERNMENT PROPERTY OVERSEAS (JULY 2012)

Property and equipment (hereafter stated "property") that MCC Contractors (other than Personnel Service Contractors) acquire and for which they receive MCC reimbursement through the invoice process is Government (MCC) owned property. Government property is to be used, monitored, and inventoried in accordance with FAR Part 45, Subpart 45.5 Management of Government Property in the Possession of Contractors, as well as MCC Policy 350, "Policies and procedures on Property, Plant, and Equipment." The contractor should start a running property inventory as soon as it begins to procure property and equipment the cost of which is charged back to the Government. The Contractor shall furnish a copy of such inventory to the COR semi-annually or at least as the contract is in its final stages of completion if its duration does not exceed six months. Mandatory fields on the inventory include: The Contractor's Name; the Contractor Number; the Country Location and address location; a description of the item with model number serial number, and manufacturer; the acquisition date and cost; the Quantity; the expected life; and its condition at the time of the report. The contractor is responsible for removing US Government identification from property that is to be abandoned.

(End of Clause)

MCC 52.243-70 INCREASE IN SERVICES (OCT 2006)

The services described in Sections B and C (statement of work) represent the Government's best estimate for known requirements at this time. However, due to the uncertainty of the work, the Government reserves the right to add or delete services if the need arises.

(End of clause)

MCC 52.242-70 Contractor Performance Assessment Rating System (CPARS) Registration

CONTRACTOR PERFORMANCE ASSESSMENT RATING SYSTEM (CPARS) REGISTRATION (JUNE 2019)

The Millennium Challenge Corporation (MCC) utilizes the Contractor Performance Assessment Rating System (CPARS) to evaluate contractor performance (see FAR, Subparts 42.1502 and 42.1503). Contractors doing business with MCC are required to register in CPARS accessible via the Internet at: https://www.cpars.gov/. An evaluation of contractor performance using the CPARS is mandatory for all contract actions exceeding the simplified threshold, but may be conducted for contract actions lower than that amount should significant events occur such as a contract termination or extraordinary contract performance by the contractor. Inquiries regarding the registration process should be addressed to the CPARS help desk. The email address is WEBPTSMH@NAVY.MIL and the telephone number is (207) 438-1690.

(End of clause)

Section I - Contract Clauses

Clauses incorporated by reference

Article Number	Reference Text
52.203-17	52.203-17 Contractor Employee Whistleblower Rights and Requirement to Inform Employees of Whistleblower Rights (APR 2014)

Clauses incorporated by full text

52.217-8 52.217-8 Option to Extend Services (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 7.

(End of clause)

52.212-5 52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders-Commercial Items (MAY 2019)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(3) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)

(4) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(5) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004)(Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being

incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

x (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Sept 2006), with Alternate I (Oct 1995) (41 U.S.C. 4704 and 10 U.S.C. 2402).

x (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Oct 2015) (41 U.S.C. 3509)).

x (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (June 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

_____ (4) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Oct 2018) (Pub. L. 109-282) (31 U.S.C. 6101 note).

(5) [Reserved].

_____ (6) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

_____ (7) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

x (8) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (Oct 2015) (31 U.S.C. 6101 note).

x (9) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

(10) [Reserved].

_____ (11) (i) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Nov 2011) (15 U.S.C. 657a).

_____ (ii) Alternate I (Nov 2011) of 52.219-3.

_____ (12)(i) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2014) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

_____ (ii) Alternate I (Jan 2011) of 52.219-4.

(13) [Reserved]

_____ (14)(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2011) (15 U.S.C. 644).

_____ (ii) Alternate I (Nov 2011).

_____ (iii) Alternate II (Nov 2011).

_____ (15)(i) 52.219-7, Notice of Partial Small Business Set-Aside (June 2003) (15 U.S.C. 644).

_____ (ii) Alternate I (Oct 1995) of 52.219-7.

_____ (iii) Alternate II (Mar 2004) of 52.219-7.

_____ (16) 52.219-8, Utilization of Small Business Concerns (Oct 2018) (15 U.S.C. 637(d)(2) and (3)).

_____ (17)(i) 52.219-9, Small Business Subcontracting Plan (Aug 2018) (15 U.S.C. 637(d)(4)).

_____ (ii) Alternate I (Nov 2016) of 52.219-9.

_____ (iii) Alternate II (Nov 2016) of 52.219-9.

_____ (iv) Alternate III (Jan 2017) of 52.219-9.

_____ (v) Alternate IV (Aug 2018) of 52.219-9.

_____ (18) 52.219-13, Notice of Set-Aside of Orders (Nov 2011)(15 U.S.C. 644(r)).

_____ (19) 52.219-14, Limitations on Subcontracting (Jan 2017) (15 U.S.C. 637(a)(14)).

_____ (20) 52.219-16, Liquidated Damages - Subcontracting Plan (Jan 1999) (15 U.S.C. 637(d)(4)(F)(i)).

_____ (21) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (Nov 2011) (15 U.S.C. 657 f).

_____ (22) 52.219-28, Post Award Small Business Program Rerepresentation (Jul 2013) (15 U.S.C. 632(a)(2)).

_____ (23) 52.219-29, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Dec 2015) (15 U.S.C. 637(m)).

_____ (24) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Dec 2015) (15 U.S.C. 637(m)).

_____ (25) 52.222-3, Convict Labor (June 2003) (E.O. 11755).

_____ (26) 52.222-19, Child Labor - Cooperation with Authorities and Remedies (Jan 2018) (E.O. 13126).

_____ (27) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

_____ (28) (i) 52.222-26, Equal Opportunity (Sept 2016) (E.O. 11246).

_____ (ii) Alternate I (Feb 1999) of 52.222-26.

_____ (29) (i) 52.222-35, Equal Opportunity for Veterans (Oct 2015)(38 U.S.C. 4212).

_____ (ii) Alternate I (July 2014) of 52.222-35.

_____ (30) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jul 2014) (29 U.S.C. 793).

_____ (ii) Alternate I (July 2014) of 52.222-36.

_____ (31) 52.222-37, Employment Reports on Veterans (Feb 2016) (38 U.S.C. 4212).

_____ (32) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

_____ (33)(i) 52.222-50, Combating Trafficking in Persons (Jan 2019) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

_____ (34) 52.222-54, Employment Eligibility Verification (Oct 2015). (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial items as prescribed in 22.1803.)

_____ (35)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

_____ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

_____ (36) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Jun 2016) (E.O. 13693).

_____ (37) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Jun 2016) (E.O. 13693).

_____ (38)(i) 52.223-13, Acquisition of EPEAT-Registered Imaging Equipment (Jun 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (Oct 2015) of 52.223-13.

_____ (39)(i) 52.223-14, Acquisition of EPEAT-Registered Televisions (Jun 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (Jun 2014) of 52.223-14.

_____ (40) 52.223-15, Energy Efficiency in Energy-Consuming Products (Dec 2007) (42 U.S.C. 8259b).

_____ (41)(i) 52.223-16, Acquisition of EPEAT-Registered Personal Computer Products (Oct 2015) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (Jun 2014) of 52.223-16.

x (42) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (Aug 2011) (E.O. 13513).

_____ (43) 52.223-20, Aerosols (Jun 2016) (E.O. 13693).

_____ (44) 52.223-21, Foams (Jun 2016) (E.O. 13693).

_____ (45)(i) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

_____ (ii) Alternate I (Jan 2017) of 52.224-3.

_____ (46) 52.225-1, Buy American - Supplies (May 2014) (41 U.S.C. chapter 83).

_____ (47)(i) 52.225-3, Buy American - Free Trade Agreements - Israeli Trade Act (May 2014) (41 U.S.C. chapter 83, 19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

_____ (ii) Alternate I (May 2014) of 52.225-3.

_____ (iii) Alternate II (May 2014) of 52.225-3.

_____ (iv) Alternate III (May 2014) of 52.225-3.

_____ (48) 52.225-5, Trade Agreements (Aug 2018) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

x (49) 52.225-13, Restrictions on Certain Foreign Purchases (June 2008) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

_____ (50) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

_____ (51) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

_____ (52) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

_____ (53) 52.232-29, Terms for Financing of Purchases of Commercial Items (Feb 2002) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

_____ (54) 52.232-30, Installment Payments for Commercial Items (Jan 2017) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

x (55) 52.232-33, Payment by Electronic Funds Transfer - System for Award Management (Oct 2018) (31 U.S.C. 3332).

_____ (56) 52.232-34, Payment by Electronic Funds Transfer - Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

_____ (57) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

_____ (58) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

_____ (59) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

_____ (60)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx. 1241(b) and 10 U.S.C. 2631).

_____ (ii) Alternate I (Apr 2003) of 52.247-64.

_____ (iii) Alternate II (Feb 2006) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

_____ (1) 52.222-17, Nondisplacement of Qualified Workers (May 2014)(E.O. 13495).

_____ (2) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

_____ (3) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (4) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (5) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards - Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (6) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment - Requirements (May 2014) (41 U.S.C. chapter 67).

_____ (7) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services - Requirements (May 2014) (41 U.S.C. chapter 67).

_____ (8) 52.222-55, Minimum Wages Under Executive Order 13658 (Dec 2015).

_____ (9) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2017) (E.O. 13706).

_____ (10) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (May 2014) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, and does not contain the clause at 52.215-2, Audit and Records - Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause -

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Oct 2015) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(iv) 52.219-8, Utilization of Small Business Concerns (Oct 2018) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds $700,000 ($1.5 million for construction of any public facility), the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(v) 52.222-17, Nondisplacement of Qualified Workers (May 2014) (E.O. 13495). Flow down required in accordance with paragraph (l) of FAR clause 52.222-17.

(vi) 52.222-21, Prohibition of Segregated Facilities (Apr 2015)

(vii) 52.222-26, Equal Opportunity (Sept 2015) (E.O. 11246).

(viii) 52.222-35, Equal Opportunity for Veterans (Oct 2015) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (Jul 2014) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (Feb 2016) (38 U.S.C. 4212)

(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xii) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xiii)

_____ (A) 52.222-50, Combating Trafficking in Persons (Jan 2019) (22 U.S.C. chapter 78 and E.O 13627).

x (B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O 13627).

(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xvi) 52.222-54, Employment Eligibility Verification (Oct 2015) (E.O. 12989).

(xvii) 52.222-55, Minimum Wages Under Executive Order 13658 (Dec 2015).

(xviii) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2017) (E.O. 13706).

(xix)(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (May 2014) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx. 1241(b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Section J - List of Documents, Exhibits, and other Attachments

Short Text Attachments:

Title	Description	Short Text	Entity	Reference
	MCC Requisition Information	COR=Ngeleza, Guyslain Kayembe Primary Country=LSO Project Monitor=Blaser, Mitchell Priority=High	LINE	

Clauses incorporated by reference

None

Clauses incorporated by full text

Appendices and Reference Materials
Appendices and Reference Materials attached at the end of RFQ

Section K - Representations, Certifications, and Other Statements of Offerors

Clauses incorporated by reference

Article Number	Reference Text
52.225-25	52.225-25 Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran--Representation and Certifications (AUG 2018)
52.204-19	52.204-19 Incorporation by Reference of Representations and Certifications (DEC 2014)

Clauses incorporated by full text

52.212-3 52.212-3 Offeror Representations and Certifications-Commercial Items (AUG 2018)
The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically via the System for Award Management (SAM) website located at https://www.sam.gov/portal. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (u) of this provision.

(a) Definitions. As used in this provision -

"Economically disadvantaged women-owned small business (EDWOSB) concern" means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

"Highest-level owner" means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

"Immediate owner" means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

"Inverted domestic corporation", means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

"Manufactured end product" means any end product in product and service codes (PSCs) 1000-9999, except -

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

"Place of manufacture" means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

"Predecessor" means an entity that is replaced by a successor and includes any predecessors of the predecessor.

"Restricted business operations" means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business

operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate -

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

"Sensitive technology" -

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically -

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

"Service-disabled veteran-owned small business concern" -

(1) Means a small business concern -

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

"Small business concern" means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR Part 121 and size standards in this solicitation.

"Small disadvantaged business concern", consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that -

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by -

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

"Subsidiary" means an entity in which more than 50 percent of the entity is owned -

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

"Veteran-owned small business concern" means a small business concern -

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

"Successor" means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

"Women-owned business concern" means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

"Women-owned small business concern" means a small business concern -

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51

percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

"Women-owned small business (WOSB) concern eligible under the WOSB Program" (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.

(b)(1) Annual Representations and Certifications. Any changes provided by the offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications posted on the SAM website.

(2) The offeror has completed the annual representations and certifications electronically via the SAM website accessed through http://www.acquisition.gov. After reviewing the SAM database information, the offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Items, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs _____.

[Offeror to identify the applicable paragraphs at (c) through (t) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract will be performed in the United States or its outlying areas. Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that it _ is, _ is not a small business concern.

(2) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it _ is, _ is not a veteran-owned small business concern.

(3) Service-disabled veteran-owned small business concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents as part of its offer that it _ is, _ is not a service-disabled veteran-owned small business concern.

(4) Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, that it _ is, _ is not a small disadvantaged business concern as defined in 13 CFR 124.1002.

(5) Women-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it _ is, _ is not a women-owned small business concern.

(6) WOSB concern eligible under the WOSB Program. [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.] The offeror represents that -

(i) It _ is,_ is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(7) Economically disadvantaged women-owned small business (EDWOSB) concern. [Complete only if the offeror represented itself as a WOSB concern eligible under the WOSB Program in (c)(6) of this provision.] The offeror represents that -

(i) It _ is, _ is not an EDWOSB concern, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It _ is, _ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(7)(i) of this provision is accurate for each EDWOSB concern participating in the joint venture. [The offeror shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint venture: _____.] Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.

Note: Complete paragraphs (c)(8) and (c)(9) only if this solicitation is expected to exceed the simplified acquisition threshold.

(8) Women-owned business concern (other than small business concern). [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it _ is a women-owned business concern.

(9) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:_____

(10) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that -

(i) It _ is, _ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR Part 126; and

(ii) It _ is, _ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126, and the representation in paragraph (c)(10)(i) of this provision is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The offeror shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

(d) Representations required to implement provisions of Executive Order 11246 -

(1) Previous contracts and compliance. The offeror represents that -

(i) It _ has, _ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It _ has, _ has not filed all required compliance reports.

(2) Affirmative Action Compliance. The offeror represents that -

(i) It _ has developed and has on file, _ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 cfr parts 60-1 and 60-2), or

(ii) It _ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1) The offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that for other than COTS items, the offeror has considered components of unknown origin to have been mined, produced, or manufactured outside the United States. The offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products, i.e., an end product that is not a COTS item and does not meet the component test in paragraph (2) of the definition of "domestic end product." The terms "commercially available off-the-shelf (COTS) item" "component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.

Country of Origin

_____

_____

_____

_____

_____

_____

[List as necessary]

(3) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25.

(g)(1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (g)(1)(iii) of this provision, is a domestic end product and that for other than COTS items, the offeror has considered components of unknown origin to have been mined, produced, or manufactured outside the United States. The terms "Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end

product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.

Country of Origin

_____

_____

_____

_____

_____

_____

[List as necessary]

(iii) The offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products, i.e., an end product that is not a COTS item and does not meet the component test in paragraph (2) of the definition of "domestic end product."

Other Foreign End Products:

Line Item No.

Country of Origin

_____

_____

_____

_____

_____

_____

[List as necessary]

(iv) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate I. If Alternate I to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Canadian End Products:

Line Item No.

_____

_____

_____

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Canadian or Israeli End Products:

Line Item No.

Country of Origin

_____

_____

_____
_____
_____
_____
[List as necessary]

(4) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.

Country of Origin

_____
_____
_____
_____
_____
_____
[List as necessary]

(5) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(5)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.

Country of Origin

_____
_____
_____
_____
_____
_____
[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals -

(1) _ Are, _ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) _ Have, _ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) _ Are, _ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of

any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) _ Have, _ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds $3,500 for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at .]

(1) Listed end products.

Listed End Product

Listed Countries of Origin

_____

_____

_____

_____

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

_ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

_ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly -

(1) _ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) _ Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

_ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror _ does _ does

not certify that -

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

_ (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror _ does _ does not certify that -

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies -

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM database to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

_ TIN: _____.

_ TIN has been applied for.

_ TIN is not required because:

_ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

_ Offeror is an agency or instrumentality of a foreign government;

_ Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

_ Sole proprietorship;

_ Partnership;

_ Corporate entity (not tax-exempt);

_ Corporate entity (tax-exempt);

_ Government entity (Federal, State, or local);

_ Foreign government;

_ International organization per 26 CFR 1.6049-4;

_ Other _____.

(5) Common parent.

_ Offeror is not owned or controlled by a common parent;

_ Name and TIN of common parent:

Name _____.

TIN _____.

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that -

(i) It _ is, _ is not an inverted domestic corporation; and

(ii) It _ is, _ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror -

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $3,500 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if -

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation.

(1) The Offeror represents that it _ has or _ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: _ Yes or _ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that -

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has

considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that -

(i) It is _ is not _ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is _ is not _ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it _ is or _ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____ (or mark "Unknown")

Predecessor legal name: _____

(Do not use a "doing business as" name)

(s) Reserved.

(t) Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require offerors to register in SAM (52.212-1(k)).

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) _ does, _ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) _ does, _ does not publicly disclose quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror's own web site or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported:_____

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(End of provision)

Section L - Instructions, Conditions and Notices to Offerors

Clauses incorporated by reference

None

Clauses incorporated by full text

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO QUOTERS

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO QUOTERS

REQUEST FOR QUOTES

This Request for Quote (RFQ) is issued in accordance FAR Parts 12 & 13. **All Quoters are required to have an active SAM registration prior to submission of quotes.**

Instructions to Quoters

Quote Format

The quote shall be prepared to meet the following format requirements:

- 8.5 x 11 inch paper, with the exception of charts (such as MS-Project) that can be presented on folded 11 x 17 pages, if needed
- Single-spaced typed lines, including figures glossaries
- 1 inch margins
- 12-point (Times New Roman font) in the text and
- 10-point (Times New Roman font) for all tables
- In either Microsoft Word, Microsoft Excel software and Adobe PDF versions
- All quote pages must be numbered

Submission of Quotes

Quoters are responsible for submitting quotes, and any modifications or revisions, so as to reach the Government office designated below by the time and date specified below:

Date: **Monday, 29 July 2019**

Time: **2:00 PM Eastern**

Location: **Millennium Challenge Corporation,**

Attn: Cierra Washington Contract Specialist

washingtoncd@mcc.gov

General Instructions. Quotes shall clearly demonstrate an understanding of the requirements, as well as convey the Contractor's capability for transforming its understanding into successful performance under a contract. A complete quote shall consist of a cover letter, a technical submission, a past performance submission, and a price submission, as detailed below. Incomplete quotes will be considered non-responsive and will not be further evaluated.

Quotes submitted in response to this solicitation shall be furnished in the following form with the numbers of copies as specified below:

Quotes shall be submitted in three volumes: Volume I Technical Capability, Volume II Past Performance, and Volume III Price. **(NOTE: Volumes I and II can be combined).**

Volumes I and II must not contain pricing information; however, resource information (such as data concerning labor categories, subcontracts, etc) must be contained in the technical quote so that the Contractor's understanding of the Statement of Work may be evaluated.

The Government will evaluate quotes in accordance with the evaluation criteria set forth in Section M of the RFQ.

Quoters shall submit their quotes in the following format:

- **COVER LETTER via email** to Cierra Washington the email address specified in ***Submission of Quotes***. The Cover Letter must be signed by an individual authorized to commit the company to the quote. The cover letter must include the Company's Name, Address, Point of Contact, Phone Number, Email and DUNS number and identify all enclosures included in the quote. In addition, the Quoter must provide the company CPARs point of contact name, number and email address. Any assumptions forming the basis of the submittal must be clearly identified in the cover letter. The letter shall reference the solicitation number and acknowledge that it transmits an offer in response to the solicitation and amendment(s). It shall state: **Quote validity for 90 days after submission.** .

- **VOLUME I TECHNICAL CAPABILITY via email** to Cierra Washington at the email address specified in ***Submission of Quotes***.

- **VOLUME II PAST PERFORMANCE via email** to Cierra Washington at the email address specified in ***Submission of Quotes***.

- **VOLUME III PRICE** via **email** to Cierra Washington at the email address specified in ***Submission of Quotes***.

Electronic Submission via email

All electronic submissions should comply with the FAR in regards to timeliness. The electronic submissions of quotes shall state in **95332419Q0090 Statistical Capacity and Data Use in Lesotho** in the subject line and shall be in the following format:

The electronic text shall be in ADOBE PDF and/or Microsoft Word 2010 or later (.doc or .docx), uncompressed files. A directory identifying the file names and contents of each file shall accompany the submission. The price information shall be submitted as a separate file.

The electronic versions of spreadsheets shall be in Excel 2010 or later (.xls or .xlsx) format. The electronic spreadsheets shall not be compiled or password protected. All cells and formulas shall be visible, and unprotected. Quoters shall not establish links within these files.

All quote data (e.g., graphs, figures, tables) shall be in a format capable of being highlighted, copied, and pasted into another application using any standard Windows software.

MCC 52.204-71 NOTICE OF MCC ELECTRONIC MAIL FILTERS APRIL 2019

Quoters are advised that due to current cybersecurity threats, MCC currently blocks attachments containing extensions that run programs. These include any files that contain or are executables, macros, and other extensions that present a threat. As such Quoter, must not use any of these file extensions and remove all macros from Microsoft Office documents (Word, Excel) or their quote will be blocked, preventing receipt of the quote by MCC and potentially preventing the Quoter from being considered for award.

The following are examples of file types that are blocked, however this list is not exhaustive or fully-inclusive as additional, similar file types may be blocked in the future:

.vbs (Microsoft visual basic scripting)

.vbe (VBScript Encoded Script File)

.scr (script)

.reg (registration file)

.jar (java file extension)

.exe (executable)

.docm (word with macros)

.xlsm (excel with macros)

.pptm (powerpoint with macros)

.app (executable)

.ani (animation files)

.ace (data compression archive file format used by WinAce)

.ico (image file format)

.js (java script)

.zip (compression file)

QUOTE CONTENT AND SUBMISSION INSTRUCTIONS

Quotes should clearly demonstrate that the Contractor understands the technical requirements of the Statement of Work (SOW). Failure to explain Contractor's ability to meet all requirements may result in the Contractor's quote not being considered. Clarity and completeness of quotes are of the utmost importance. Therefore, quotes must be written in a practical, clear and concise manner.

The narrative shall provide the Government with a reasonable assurance that the company has the relevant experience, capacity and capability required to fulfil the requirements. A restatement of the Statement of Work will be deemed unacceptable and may result in being not advantageous to the government.

Quote Preparation and Instructions

Cover Letter

An authorized official who can obligate the Contractor shall sign a Cover Letter in contractor format demonstrating the contractor's intent to be bound to the terms and conditions.

Technical Capability Volume I

Quoters should submit a technical quote of no more than twenty five (25) pages. Charts, graphs, resumes and CVs of personnel may be included in an appendix to the 25 page technical quote without a page limit.

The technical quote should address the requirement of Section C of this Request for Quote and will be evaluated on the criteria in Section M of this Request for Quote. **Pricing information must not be included in any part of Volume I.**

The written Technical Capability submission shall be composed of the following:

Factor 1 Technical Capability

Sub factor 1 – Key and Non-Key Personnel Qualifications

Quoters should submit resumes of key and non-key personnel proposed on the chart in Section H – *Non Key Personnel*. Resumes shall include the employee's education (including name of school, length of time and degree/certificate), relevant training and specific experiences that are directly related to the requirements of this RFQ. Resumes shall be in chronological order with the latest dates of employment first and will identify the company or agency, period of employment, title and job description of the individual, and level of responsibility. The Quoter shall include a matrix that demonstrates the personnel meeting the qualifications in Section H.

MCC expects at least key personnel to be available for a kick-off mission to Lesotho within 2 weeks of award. Contractors should indicate their availability and planning to meet this requirement.

Subfactor 2 - Firm's Overall Capability, Sector Experience and Technical Approach

Quoters should demonstrate its capability to fulfill the statement of work and its sector experience on similar projects in Southern Africa and approach to achieve the tasks in the Statement of Work. In particular, Quoters should submit a workplan demonstrating its ability to achieve the tasks.

Factor 2 Past Performance Volume II

The Quoter shall provide three (3) examples of relevant contracts or task/call orders that are similar in size, scope, and complexity to the Statement of Work, performed as a prime contractor or subcontractor within the past three years of the date of this solicitation in the Southern African region, preferably in Lesotho. This should include assignments where the contractor was required to mobilize small teams to complete similar assignments under tight timelines. If proposing a contractor teaming arrangements (CTA) or subcontractor, at least one of the past performance projects performed by the proposed Team Lead or subcontractor must provide evidence of coordinating and managing multiple team members. Past Performance shall not exceed six pages.

The Quoter shall include the following matrix for each project submitted:

Contract/Task/Call Order Number	**Period of Performance (base and options)**	**Contract/Task/Call Order Value**

Technical POC		
Name	Email	Tel. Number
Contractual POC		
Name	Email	Tel. Number
Project Description		
Relevance to the requirement		

The Government will consider the relevance of past performance information obtained in relation to the scope of this RFQ. Past Performance, either positive or negative, which is considered by the Government to be more closely related to the scope of this effort will be given additional weight in the evaluation process.

Note that Government evaluators may utilize various OCONUS, federal, state, and local past performance databases including, but not limited to, Past Performance Information Retrieval System (PPIRS) and Contractor Performance Assessment Reporting System (CPARS). Government evaluators reserve the right to contact any of the provided references to solicit additional information or clarification regarding the Quoter's past performance. The Contracting Officer and/or technical evaluators may research Quoter performance on any OCONUS, federal, state, local, and commercial contract performance of the Quoter that is known to the Contracting Officer, but not included as a reference on a submitted quotation. Additionally, personal experience and evaluator knowledge of the Quoter's particular past performance may be utilized by the technical evaluation team members as long as there's sufficient documentation which can support their position.

Factor 3 – Price

Price Quote (no page limit) VOLUME III

The Quoter shall submit its Firm Fixed Price in accordance with the deliverables and payment schedule in Section B.

Quoters are encouraged to offer *discounts* to their commercial rates when preparing their fixed prices.

Other Direct Costs

The firm fixed prices shall be inclusive of Other Direct Costs.

General and Administrative (G&A) Fee

The firm fixed prices shall be inclusive of G&A.

Names and telephone numbers of persons authorized to conduct negotiations, as well as the name of the official authorized to bind the Quoter's organization shall be clearly identified.

NOTE: Quoters are cautioned that failure to provide all of the required information may make the quote non-responsive and may result in elimination of the Quoter from further consideration for award.

Questions/Requests for Clarification

Questions regarding this RFQ should be addressed to washingtoncd@mcc.gov. The closing time for submission of questions during the quote preparation period is 2:00 PM, Monday, 15 July 2019. TO ASSURE TIMELY AND PROPER HANDLING, QUESTIONS AND QUOTES SENT ELECTRONICALLY SHALL STATE "95332419Q0090 Statistical Capacity and Data Use in Lesotho" IN THE SUBJECT LINE.

The Government does not guarantee that it will answer any question or request for clarification received later than 2:00 PM, Monday, 15 July 2019. Questions or requests for clarification that result in specific information necessary to submit quotes will be provided to all contractors. Therefore, questions/comments shall not be marked with a restrictive legend and shall not include proprietary information. The Government is not obligated to provide responses to all RFCs, but will consider them and incorporate changes into the SOLICITATION as deemed necessary.

Clarifications/Discussions

The Government reserves the right to award without clarification/discussions. Therefore, Quoters are encouraged to submit sound technical quotes supported by competitive prices.

Quoters are cautioned that failure to provide all the required information may make the offer non-responsive and may result in elimination of the Quoter from further consideration for award.

MCC 52.213-70 EXCLUSION OF QUOTES AND PRE-AWARD COMMUNICATION WITH OFFERORS

EXCLUSION OF QUOTES AND PRE-AWARD COMMUNICATIONS WITH OFFERORS (JUNE 2019)

At any time prior to award, including upon receipt of quotes, the Government may exclude a quote from further consideration for reasons such as (but not limited to): non-compliance with instructions related to this solicitation; the quote is not among the most highly rated; or the quote is not likely to be selected for award. The Government need not notify a Quoter that its quote has been excluded from further consideration nor need it provide the Quoter with a pre-award debriefing. However, the Quoter will be provided post-award notification and if requested, a brief explanation of the basis for the award decision.

After receipt of quotes, the Government will conduct an evaluation. The Government intends to evaluate quotes and issue a contract without communications with offerors. However, during the evaluation process, the Government may, solely at its discretion, communicate with a Quoter for any purpose, such as to gain a better understanding of the quote. As a result of such communication, the Government may allow Quoters to submit quote revisions. If quote revisions are allowed, the Government may, solely at its discretion, impose non-common due dates for the revisions. In other words, the Government may elect to have a quote revision date for a Quoter that is different than the quote revision date for another Quoter(s). The Government need not conduct communications with all Quoters. Rather, the Government may, at its discretion, conduct communications with one or only some Quoters. Furthermore, the Government need not permit all Quoters to submit quote revisions. Rather, the Government may, at its discretion, seek quote revisions from only one or only some Quoters.

(End of clause)

Section M - Evaluation Factors for Award

Clauses incorporated by reference

None

Clauses incorporated by full text

SECTION M - EVALUATION FACTORS FOR AWARD

BASIS OF AWARD

The Government intends to award a contract resulting from this solicitation to the responsible Quoter whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. Quoters are cautioned that an award may not necessarily be made to the lowest priced Quoter. However, if non-price factors are evaluated as comparatively equal between two or more Quoters, price may become a determinative factor. The Government reserves the right to award without clarification/discussion; therefore, it is incumbent upon all Quoters to submit their best quote.

EVALUATION FACTORS AND SUBFACTORS

All quotes will be evaluated based on the evaluation factors listed below.

The following evaluation factors and sub factors are listed in descending order of importance, (1) Technical Capability; (2) Past Performance; (3) and Price.

FACTOR 1: TECHNICAL CAPABILITY

Subfactor 1: KEY AND NON-KEY Personnel Qualifications

MCC will evaluate resumes of key and new proposed team members noted on the chart in Section H – *Non Key Personnel* in accordance with the qualifications in Section H.

Subfactor 2: Firm's Overall Capability, Sector Experience and Technical Approach

MCC will evaluate Quoters demonstrated capability, experience, technical approach and workplan how it will achieve the deliverables.

MCC will evaluate the quote's technical approach and demonstrated understanding of the challenges/problems of potential task involved. MCC will also evaluate the Quoter's quality assurance approach and methods for performing the tasks.

MCC will evaluate the text of the written quote for firm evidence and clear demonstration that the Quoter understands the requirements for quality work and deliverables, including appropriateness of style, grammatical correctness, and data integrity relative to the writing necessary for the project.

and control, and ability to successfully perform relevant project to ensure successful execution of the task.

FACTOR 2: PAST PERFORMANCE

The Quoter shall provide three (3) examples of relevant contracts or task/call orders that are similar in size, scope, and complexity to the Statement of Work, performed as a prime contractor or subcontractor within the past three years of the date of this solicitation in the Southern African region, preferably in Lesotho. This should include assignments where the contractor was required to mobilize small teams to complete similar assignments under tight timelines. If proposing a contractor teaming arrangements (CTA) or subcontractor, at least one of the past performance projects performed by the proposed Team Lead or subcontractor must provide evidence of coordinating and managing multiple team members. Past Performance shall not exceed six pages.

The Government reserves the right to consider information from any other sources when evaluating the Quoter's past performance.

FACTOR 3: PRICE

The Government will examine price quotes for realism, reasonableness and completeness. **Quoters are requested and encouraged to provide any discounted pricing.**

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate Quotes for award purposes by adding the total price for all options to the total price for the basic requirement. This includes options under FAR clause 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options will not obligate the Government to exercise the option(s).

EVALUATION METHODOLOGY

A contract will be awarded to the Quoter whose quotes conform to the requirements outlined in this RFQ and are most advantageous to the Government based on the best value determination. The Government will perform a comparative analysis of quotes assessing and documenting the advantages and disadvantages of each quote as related to the Evaluation Factors above.

Potential risk to the Government will also be evaluated. Technical and performance risk, based upon the Quoter's evaluated technical capability, will be considered during the evaluation as well as any possible pricing risk. Subjective judgment on the part of the Government evaluators is implicit in the entire process. Throughout the evaluation the Government will consider "correction potential" when a deficiency is identified.